Revision Date:
04/01/2026

Background:
Lawfully present Non Citizens may be eligible to CalFresh as long as they meet all other eligibility requirements. When a qualified Non Citizen is ineligible to CalFresh solely due to not meeting a Non Citizen condition, they may be eligible to California Food Assistance Program (CFAP) benefits. Receipt of CalFresh or CFAP is not considered a "public charge" as defined by the United States Citizenship and Immigration Services (USCIS).

Purpose:
This section describes the requirements Non Citizens must meet to be eligible to CalFresh or CFAP. The section is being updated to include new Non Citizen requirements due to House of Representatives 1, An Act to Provide Reconciliation Pursuant to Title II of H. Con. Res. 14 (H.R. 1), signed into Federal law on July 4, 2025.

Policy:
Certain lawfully present Non Citizens are eligible to receive federally funded food benefits known as CalFresh while others are eligible to state funded food benefits known as CFAP. The individual's Non Citizen category determines whether they may be eligible to CalFresh, CFAP, or neither.

1. Qualified Non Citizens

The following lawfully present Non Citizens are known as qualified Non Citizens and are eligible to CalFresh so long as they meet all other eligibility requirements including Non Citizen conditions.

Non Citizen Category	Description
United States (U.S.) Nationals Born in American Samoa, Swains Island, or Northern Mariana Islands	Individuals born in American Samoa or Swains Island after 12/21/1952 are considered U.S. Nationals, but not U.S. Citizens. These individuals may have a U.S. passport that notates that the bearer of the passport is a U.S. National and not a U.S. Citizen. Citizens of the Northern Mariana Islands born before November 4, 1986 who opted out of becoming U.S. Citizens are considered U.S. Nationals.
Lawful Permanent Residents (LPRs)	An individual who is lawfully admitted to the U.S. for permanent residence. These individuals hold a Permanent Resident card (I-551) also known as a green card.
Compacts of Free Association (COFA) Citizens	COFA countries include the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau. As of March 9, 2024, COFA Citizens who lawfully reside in the U.S. are eligible to CalFresh, provided they meet all other eligibility criteria.
Cuban and Haitian Entrants	A Cuban/Haitian Entrant as defined in §501(e) of the Refugee Education Assistance Act of 1980. The law defines a Cuban/Haitian Entrant as any of the following: • Any individual granted parole as a Cuban/Haitian Entrant or granted any other special status established under the immigration laws for Nationals of Cuba or Haiti, regardless of the status of the individual at the time they apply for benefits.

	• A National of Cuba or Haiti for whom a final, non-appealable, and legally enforceable order of removal has not been entered and is either: o Paroled into the U.S. and has not acquired any other Non Citizen status under the Immigration and Nationality Act (INA). Unlike other parolees, Cuban/Haitian Entrants may still be eligible if their parole period has expired, if they have not acquired any other immigration status. o Subject of removal proceedings under the INA. o Has an application for asylum pending under the INA. • Haitian orphans permitted to enter the U.S. as Humanitarian Parolees, meet the definition of a Cuban/Haitian Entrant. A Haitian orphan will have an I-94 indicating "paroled" into the U.S. on or after January 12, 2010. • Cuban medical professionals, their Cuban spouses, and Cuban children, paroled under INA §212(d)(5). • Non-Cuban spouse and/or children of a Cuban National admitted as a parolee under §212(d)(5) may not be considered a Cuban/Haitian Entrant. • A child born to at least one Haitian National parent regardless of the country the child is born in is deemed a Haitian National and may be considered a Cuban/Haitian Entrant. This same rule does not apply to children born outside of Cuba to Cuban Nationals. Note: Cuban/Haitians granted Temporary Protected Status (TPS) are not eligible for CalFresh or CFAP, unless they acquired TPS after arriving as a Cuban/Haitian Entrant.

2. Non Citizen Conditions

Certain LPRs are subject to a five year waiting period and are not eligible for CalFresh until they meet one of the Non Citizen conditions listed below or are exempt from the waiting period. If the LPR does not meet a Non Citizen condition, they are eligible to CFAP as long as they meet all other eligibility criteria.

- Have been lawfully residing in the U.S. as a qualified Non Citizen for five years beginning on their date of entry. If the individual was granted a qualified Non Citizen status while already living in the U.S., the five-year period begins on the date the Non Citizen obtained status as a qualified Non Citizen through USCIS. If USCIS granted qualified status retroactively, use the date that USCIS granted qualified status.
- Children under 18 years of age regardless of the date of entry into the U.S.
- Individuals lawfully admitted into the U.S. for permanent residence that can be credited with 40 qualifying quarters of work under the Social Security system. See Section 63-154.7 below.
- Elderly individuals who were lawfully residing in the U.S. on August 22, 1996, and were 65 years or older on August 22, 1996.
- Blind or disabled individuals receiving benefits or assistance for their condition regardless of when they entered the U.S. Non Citizens are considered disabled if they are receiving any of the following disability-based income:

- Supplemental Security Income/State Supplementary Payment (SSI/SSP) that is disability based.
- Interim assistance pending SSI/SSP that is disability based.
- Social Security Disability benefits.
- Federal or State disability retirement benefits for a permanent disability.
- Veteran's disability benefits.
- Railroad Retirement disability benefits.

- Are an American Indian born abroad and have become an LPR:
  - A Native American born in Canada that is living in the U.S. under §289 of the INA or Non Citizen members of a Federally recognized Native American tribe, as defined in §4(e) of the Indian Self-Determination and Education Assistance Act. This includes, but is not limited to, the Saint Regis Band of the Mohawk in New York State, the Micmac in Maine, the Abanaki in Vermont, and the Kickapoo in Texas. Applicants must provide a membership card or other tribal document demonstrating membership in a Native American tribe or an I-551 with Class of Admission (COA) code S13.
- Certain Hmong or Highland Laotian tribal members and have become an LPR:
  - Non Citizens lawfully residing in the U.S. who are from Laos, Vietnam, Cambodia, or another country with Hmong or Highland Laotian populations, who were members of a Hmong or Highland Laotian tribe at the time the tribe rendered assistance to the US Armed Forces during the Vietnam era (August 5, 1964, to May 7, 1975). This category includes the spouse (but not a divorced spouse), unmarried dependent child (under the age of 18, or a full-time student under the age of 22) or un-remarried surviving widow(er) of a deceased Hmong or Highland Laotian.
- An active member of the U.S. Armed Forces (excluding National Guard) or veteran of the U.S. Armed Forces who is lawfully residing in the U.S. This includes the spouse, unmarried dependent children, or un-remarried surviving spouse of a deceased veteran. See table below for descriptions of a veteran, surviving spouse, and unmarried dependent child as they relate to this specific condition.

Term	Description
Veteran	An individual who has been honorably discharged for a reason other than on account of alienage as documented by a DD Form 214 or other acceptable verification and has met the minimum active-duty service requirements (24 months or the period for which the person was called to active duty). A discharge "Under Honorable Conditions" is not the same as an honorable discharge and does not meet the requirement. A veteran also includes an individual who served before July 1, 1946, in the organized military forces of the Government of the Commonwealth of the Philippines.
Surviving spouse	The spouse of a deceased veteran or an individual who died while on active duty that has not remarried, and the marriage fulfilled one of these requirements: • Married for at least one year. • Married before the end of a 15-year time span following the end of the period of military service in which the injury or disease causing the death of the veteran was incurred or aggravated. • Married for any period if a child was born of the marriage or was born before the marriage.
Unmarried	A legally adopted or biological child who is under the age of 18, or under the age

dependent child	of 22 and a student, or 18 or older if the child was/is disabled and a dependent prior to turning 18.

The following exemptions from the five-year waiting period allow LPRs to receive CalFresh immediately:

- Previously held one of the following categories of Non Citizens and has since become a LPR:
  - Refugees.
  - Asylees.
  - Deportation or Removal Withheld.
  - Cuban and Haitian Entrants (eligible to CalFresh prior to becoming LPR).
  - COFA Citizens (eligible to CalFresh prior to becoming LPR).
  - Iraqis and Afghans with Special Immigrant Visas (SIV).
  - Certain Afghan Nationals Granted Parole Between July 31, 2021 and September 30, 2023.
  - Certain Ukrainian Nationals Granted Parole Between February 24, 2022 and September 30, 2024.
  - Non Citizens admitted to the U.S. as Amerasian immigrants.
  - Victims of Trafficking.

3. Ineligible Non Citizens

The following Non Citizens are not eligible to CalFresh unless their status changes to a qualifying status:

- Asylees.
- Refugees.
- Parolees (unless they are Cuban and Haitian Entrants).
- Deportation/Removal Withheld.
- Conditional Entrants.
- Battered Non Citizens.
- Victims of Trafficking.
- Certain Afghan Nationals granted parole between July 31,2021, and September 30, 2023.
- Certain Ukrainian Nationals granted paroled between February 24, 2022 and September 30, 2024.
- Foreign nationals holding non-immigrant visas such as student, visitor, business, or tourist visas.
- Those admitted under color of law.
- Temporary Protected Status (TPS) holders.
- Deferred Action for Childhood Arrivals (DACA) recipients.
- Non Citizens who have applied for qualified status but have not yet been approved.
- Undocumented Non Citizens.
- Non-immigrant visa holders who stayed in the U.S. beyond the period authorized on their visa.

4. Sponsored Non Citizens

LPRs who are sponsored as a condition of entry into the U.S. must be evaluated for CalFresh/CFAP based on sponsorship and deeming regulations. Any LPR who immigrates to the U.S. based on a family member is sponsored. A sponsor is someone who signs an affidavit of support (I-864 or I-864A) promising to provide financial support for the Non Citizen. Refer to Section 63-157 Sponsored Noncitizens for more information on sponsorship and deeming regulations.

5. Opt Out at Initial Application or Recertification

Prior to determining eligibility at initial application or recertification, a Non Citizen HH member has the option to opt out of applying for CalFresh or CFAP. If they choose to opt out, do not request verification of their Non Citizen status. Any individual that opts out will be evaluated as an ineligible Non Citizen and their income and resources will be considered available to the CalFresh HH and evaluated. A Non Citizen that has chosen to opt out may change their mind and request to be added to the case at any time.

6. Verification of Non Citizen Status

Verification of Non Citizen status is a requirement in order for a Non Citizen to be aided in the CalFresh HH. The verification must be reviewed to ensure the individual is reporting the correct status. The category on the I-551, the COA on the I-94, or the category listed on the Employment Authorization Document (I-766) may assist in determining the Non Citizen status of the individual. The validity of the document must be verified through the USCIS Systematic Alien Verification for Entitlements (SAVE) system at initial application and recertification.

If a Non Citizen does not want to provide verification of their immigration status, they will be considered an ineligible Non Citizen. They will not be aided in the CalFresh HH, however their income and resources will be considered available to the HH. See Section 63-255 Treatment of Income and Expenses of Ineligible and Non-Household Members.

7. Changes in Non Citizen Status

HHs are not required to report a change in Non Citizen status mid-period. If a HH voluntarily reports a change in Non Citizen status that results in a decrease or discontinuance in benefits, document the change in the case record, send a no-change notice, and follow-up at the HH's next recertification. If a SAVE report is received mid-period that verifies a change in Non Citizen status and results in a decrease or discontinuance in benefits, timely action must be taken as a SAVE report is considered Verified Upon Receipt (VUR). If a HH voluntarily reports a change in Non Citizen status that results in an increase in benefits, take timely action.

At each recertification, ask whether any Non Citizen HH members have experienced a change in Non Citizen status. Document the HH's response in the case record and request verification when applicable. A SAVE report must be requested at each recertification.

8. 40 Quarters

A qualified Non Citizen may meet a CalFresh qualified Non Citizen condition by being credited with 40 quarters (10 years) of work. A quarter is a Social Security Administration (SSA) credit earned by working a job or as self-employed. One credit equals one calendar quarter of qualifying employment. A Non Citizen may be credited with 40 quarters of qualifying employment through quarters earned by:

- The Non Citizen themself.
- Parents, up through the quarter the applicant turned 18, including quarters earned before the child was born.
- Stepparents, if at the time the quarters were worked the child was under 18, unmarried, and there was a marital relationship between the stepparent and the child's parent. If the marital relationship ends for reasons other than death, the stepparent's quarters cannot be used.
- A current spouse for work performed during their marriage. If the marriage ends for a reason other than death the quarters of the former spouse may not be used.

- A deceased spouse for quarters earned during the marriage if the Non Citizen has not remarried.

Note: A parent may not use a child's quarters.

A Non Citizen may have more than four quarters in a year through quarters credited from other people, for example:

Scenario	HH consists of married LPR mom, U.S. Citizen dad, and U.S. Citizen minor child. Mom and dad both worked the third quarter of 2023.
Outcome	Mom can be credited with 2 quarters for the third quarter of 2023.

From 1978 ongoing, quarters are based solely on an individual's total yearly amount of earnings. The amount of earnings needed to earn a quarter increases and is different for each year. Refer to the SSA's Quarter of Coverage website for the dollar amount of earnings needed to earn one quarter based on the year the individual was working.

Quarters earned prior to 1978 are established based on the following:

- A quarter was earned for each calendar quarter in which an individual was paid $50 or more in wages, including agricultural wages, for years 1951 through 1954.
- Four quarters were earned for each calendar year in which an individual's net earnings from self-employment were $400 or more.
- A quarter (max 4 per year) was earned for each $100 of agricultural wages paid during the year for years 1955 through 1977.

Qualifying quarters of employment must be verified. Quarters may be verified in one of two ways:

- Through the SSA's automated system, which can be viewed in an Applicant Income and Eligibility Verification System (IEVS) report.
  - Non Citizens who believe that the records provided by the SSA's automated system are incorrect may request a review of work history provided by SSA. A document from SSA indicating that a determination of work quarters is under review must be provided to the county. The Non Citizen will be allowed to participate in CalFresh until SSA completes its investigation, or for a maximum of six months from the date of the original determination of insufficient quarters, whichever comes first. If upon further review SSA cannot establish additional earnings and the Non Citizen does not have at least 40 qualifying quarters, an Inadvertent Household Error (IHE) claim will be established for the months CalFresh was issued in error.
- Through employment records provided by the individual.
  - Qualifying quarters of employment may be verified by employment information provided by the HH. Employer-prepared wage statements, W-2 or W-2c forms, a copy of the federal or state income tax return as proof of earnings, or other similar employment records are acceptable. The normal application processing timeframes apply if obtaining verification of work quarters from the HH. After all the earnings are obtained for or on behalf of the Non Citizen, calculate the number of quarters to which they are eligible.

Beginning with the first quarter of 1997, credits will not be allowed if the individual who earned it received any federal means-tested public benefits during that quarter. Federal means-tested benefits include CalWORKs/Aid to Families with Dependent Children (AFDC), Refugee Cash Assistance (RCA), CalFresh, SSI, or Medi-Cal/Medicaid. A quarter is allowed if the benefit received was 100 percent state or county funded, for example, CFAP, state funded CalWORKs, Cash Assistance Program for Immigrants (CAPI), or General Relief.

Refer to Processing Guide 154-01 for guidelines on determining qualifying work quarters during the interview process.

9. Non Citizens with Orders of Deportation

When a Non Citizen HH member voluntarily reports and provides documentation of a Final Order of Deportation, notify CalFresh Program through the appropriate channels.

References:

Manual of Policies and Procedures (MPP) 63-403, 63-405
Code of Federal Regulations (CFR) 273.4
All County Information Notice (ACIN) I-23-03, I-41-07, I-102-10, I-65-11
All County Letter (ACL) 06-60, 08-15, 10-13, 21-101, 21-101E, 23-57, 24-27, 24-61, 25-92

Sunset Date:

This policy will be reviewed for continuance on or by 03/31/2029.

Approval for Release:

3/17/24

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